

FIXTURES

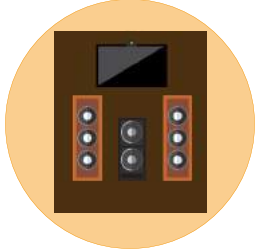
Fixtures are items attached to the land or improvements, which usually cannot be removed without an agreement between the parties.

Fixtures are considered **REAL PROPERTY**

EXAMPLES OF FIXTURES



CUSTOM SHELVING



BUILT-IN
STEREO
SYSTEM



SINK



TOILET



SHOWER / BATHTUB

To determine if an item is a fixture, use the acronym **M.A.R.I.A.**



Method of Attachment

If an item is attached using bolts, screws, nails, glue, cement, or another permanent method, it is considered a fixture, and therefore real property.



Adaptability

Items that were custom built to fit in a particular room will most likely be considered a fixture.



Relationship of the Parties

If the parties went to court to determine if an item is a fixture or not, the courts typically favor the buyer over the seller, and the tenant over the landlord.



Intention of the Parties

What was the intention of the seller when they installed the item?
If the seller installed an item with the intention of making it permanent, the item is considered a fixture.



Agreement Between the Parties

Most purchase contracts will expressly define which items are included in the sale, and which items are not included.
To avoid any misunderstandings, fixtures that will be personal property should be stated IN-WRITING.